

Republika ng Pilipinas
LUNGSOD NG DABAW
Tanggapan ng Sangguniang Panlungsod
-000-

EXCERPT FROM THE MINUTES OF THE REGULAR SESSION OF THE
SANGGUNIAN PANLUNGSOD, CITY OF DAVAO, HELD ON FRIDAY,
MARCH 20, 1987.

PRESENT:

OIC Rodrigo R. Duterte, Office of the
Vice Mayor, Presiding Officer, Councilors
Ruben V. Abarquez, Nilo G. Abellera,
Benjamin G. Bafiso, Antonio S. Castillo,
Danilo C. Dayanghirang, Dante P. Escalante,
Rene V. Galope, Luzviminda C. Ilagan, Luis
N. Lacerna, Nicanor A. Magno, Corazon N.
Malanyaon, Tomas Monteverde, Jr., Nemesio
L. Rasgo, Jr., Jacinto T. Rubillar, Jr.,
Teodulfo L. Vega and Antonio H. Vergara.

ABSENT:

Councilor Cesar R. Ledesma (OB-Federal
Republic of Germany).

* * *

RESOLUTION NO. 126

A proposed Resolution fixing the boundaries of the
different districts/barangays of Davao City, was presented
for consideration and appropriate action of the Body, by
Councilor Antonio S. Castillo,

During the discussion of this item, Councilor
Castillo informed the Body that Davao City was divided into
different districts by means merely of an executive order
for purposes of efficient administration, thereby appointing
deputy mayors in different districts. He pointed out that
in the Ordinance which was appended to the 1986 Constitution
apportioning the seats in the House of Representatives of
the Congress of the Philippines particularly Region XI,
Davao City has three (3) districts, namely: First District -
Districts of Poblacion and Talomo; Second District - Districts
of Buhangin, Bunawan and Paquibato; and Third District -
Districts of Toril, Tugbok, Calinan and Baguio. Whereas, in
other districts the constitution defines what constitutes a
particular district. In Davao City, it merely speaks of
Poblacion District and Talomo, and a question may arise as
to what comprises Talomo District. He further cited that
under the Local Government Code it is the Sangguniang Pan-
lungsod that is empowered to determine the boundaries of
barangays and districts and settle disputes arising there-
from. He was of the belief that there is no resolution or
ordinance defining certain districts like Talomo, Buhangin,
Bunawan and Paquibato.

Atty. Resurreccion Borra, Regional Director of the
COMELEC, offered some backgrounder with regard to the three
legislative districts of Davao City, that sometime in July

Resolution No. 126, Ordinance No. 14,
Series of 1987, continued:

1986 he was directed by COMELEC to recommend the creation of legislative districts in Region XI based on the following considerations: the number of precincts per barangay, the number of registered voters and the population. Fortunately, his recommendation for Region XI was incorporated in toto and approved as can now be seen in the Ordinance appended to the New Constitution which was ratified in last February 2 referendum. He read before the Body the barangays that composed the three legislative districts. He cautioned the Body however that for purposes of definition of boundaries of the barangays which divide various political districts, it is the Sangguniang Panlungsod that has the competence to do so as provided for under Sec. 177, Paragraph "bb" of Batas Pambansa Blg. 337, otherwise known as the Local Government Code.

Inasmuch as there is no ordinance passed by the Body adopting the three (3) legislative districts of the City of Davao, Councilor Antonio S. Castillo proposed the passage of an ordinance adopting the Proposed Legislative Districts as submitted by the COMELEC, Davao City and approved by COMELEC, Manila and adopting likewise the Map designating the boundaries of the three legislative districts for purposes of the May 11, 1987 Congressional Election.

After careful deliberation on the motion of Councilor Antonio S. Castillo, duly seconded by Councilors Luis N. Lacerna and Tomas Monteverde, Jr., it was

RESOLVED, AS IT IS HEREBY RESOLVED, To approve an Ordinance, entitled:

ORDINANCE NO. 14

AN ORDINANCE ADOPTING THE PROPOSED LEGISLATIVE DISTRICTS OF THE CITY OF DAVAO AND THE MAP DESIGNATING THE BOUNDARIES THEREON AS SUBMITTED BY THE COMMISSION ON ELECTIONS, DAVAO CITY AND APPROVED BY COMELEC, MANILA, AND FOR OTHER PURPOSES.

Be it Ordained by the Sangguniang Panlungsod, City of Davao, that:

SECTION 1.- For purposes of the May 11, 1987 Congressional election, the following Legislative Districts of the City of Davao as submitted by the Commission on Elections, Davao City and approved by COMELEC, Manila, shall be adopted, viz:

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Resolution No. 126, Ordinance No. 14,
Series of 1987, continued:

TERRITORIAL BOUNDARIES OF THE PROPOSED
THREE LEGISLATIVE DISTRICTS OF DAVAO CITY

DISTRICT

TERRITORY

BOUNDARY

District I -

POBLACION

TALOMO

Inclusive of the following
barangays:

Brgys. 1 to 40

Brgys. Matina, Matina Aplaya,
Buena, Talomo, Catalunan
Grande, Catalunan Pequeno,
Matina Pangil, Ma-a,
Magtuod, Langub, Dumoy,
Ballek and Bago Gallera

Bounded by:
NORTHEAST:

Brgys. Mandug, Tigatto,
Vean, Buhangin & Agdao,
all of Davao City

Southeast:

Davao Gulf

Southwest:

Brgys. Dalisaen Crossing
Bayabas, Lubogan, Toril,
all of Davao City

West :

Bangas Heights, Bago
Oshtro, Mintal, Tugbok,
all of Davao City

Northwest:

Brgys. Tacunan, Matina
Blao, New Valencia,
all of Davao City

District II-

Inclusive of the following
barangays:

BUHANGIN

BUNAVAN

Brgys. Agdao, Buhangin, Sasa,
Pampanga, Acacia, Indangan,
Communal, Gabantian, Mandug,
Gallava and Tigatto & Vean
Brgys. Lasang, San Isidro, Bunavan,
Mahayag, Gatungan, Mudlang,
Tibungco, Ilang and Panacan

Bounded by:

North : Province of Davao

East : Province of Davao and
Davao Gulf

South : Davao Gulf

Southwest:

Brgys. Poblacion, Ma-a
Magtuod, New Valencia,
New Carmen, Talandag,
Pangyan, Lampiano,
Dalegad, Magkawayan,
Inayangan & Lemunan,
all of Davao City

Resolution No. 126, Ordinance No. 14,
series of 1987, continued:

D I S T R I C T

T E R R I T O R Y

B O U N D A R Y

District II (Cont'd)

PAQUIBATO

Brgys. Malabog, Sumiao, Fatima,
Paquibato, Pafelun, Mabuhay,
Paradise Embac, Mapula,
Lunlad, Pandaitan, Colosas,
Tepak and Salapawan

West : Brgys. Bantol, Malamba,
Gumitan, all of Davao City

District III-

TORIL

Inclusive of the following
barangays:

Brgys. Toril, Crossing Bayabas,
Dallao, Lubogan, Bangkas
Heights, Mullig, Alambre,
Camansi, Dallao Plantation,
Tagluno, Tungtalan, Bato,
Kilate, Tagurano, Eden,
Bayabas, Marapang, Iisada,
Cetigan, Binugao, Sirawan,
Tibuloy, Baracatan, Atan-
Ave and Sibulan

Bounded by:

North

: Davao Norte, Brgys. Sumiao,
Fatima, Callawa, all of
Davao City

East

: Brgys. Lunlad, Mapula,
Malabog, Sumiao, Dumoy,
Baliok, Bago Gallera,
Catalunan Pequeno,
Catalunan Grande, Langub,
Magtu-od, Mandug, all of
Davao City

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Resolution No. 126, Ordinance No. 14,
Series of 1987, continued:

DISTRICT	TERRIORY	BOUNDARY
District III (Cont'd.)	Inclusive of the following barangays:	Southwest : Province of Davao del Sur West : Province of North Cotabato North : Province of Bukidnon and Davao Provinces
TUGBOK	Briggs. Manuel Gulanga, Tagakpan, Manambulan, Balangaeng, Matina Biao, Tacunan, Bago Oshiro, Mintal, Tugbok, Angalan, Ula, Los Amigos, Biao Gulanga, Talandang, New Carmen, New Valencia, and Biao Kacuella	
GALINAN	Briggs. Lacsan, Lamanan, Inayangan, Mekawayan, Domlaga, Dalegda, Wangan, Riverside, Biao Joaquin, Talomo River, Lempianao, Pangyan, Dacudao, Galinan, Subasta, Sirib, Tamayong and Cawayan	
BAGUIO	Briggs. Malagos, Baguio, Cadellian, Carmen, Tavan-tavan, Vines, Tambobong, Gumalang, Tawagan, Suawan, Melamba, Datu Salunay, Gunitan, Bantel, Daleg, Salaysay and Marilog	

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Resolution No. 126, Ordinance No. 14,
series of 1987, continued:

SEC. 2.- The Map prepared by COMELEC designating the boundaries of the three (3) legislative districts of Davao City is likewise hereby adopted;

SEC. 3.- This Ordinance shall take effect upon approval.

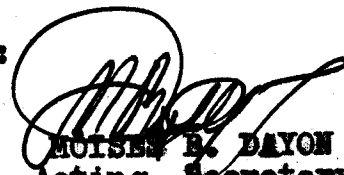
ENACTED: March 20, 1987.

CARRIED, By a majority of Fifteen (15) affirmative votes. (NOTE: Councillor Dante P. Escalante was out when the votes were taken).

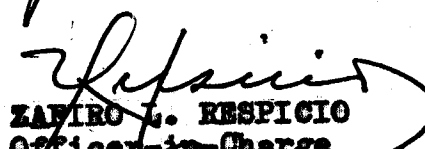
APPROVED:


RODRIGO R. DUTERTE
Officer-in-Charge
Office of the Vice Mayor
Presiding Officer

ATTESTED:


MOISES B. DAYON
Acting Secretary
Sangguniang Panlungsod
aba/elf

APPROVED: April 6, 1987


ZAFIRO L. RESPICIO
Officer-in-Charge
Office of the City Mayor

ATTESTED:


CONRADO A. ESTUART
City Secretary